



Code: KAB-AR
Revised/Reviewed: 7/21/21

Parental Rights

The following definitions and procedures will be used to implement parental rights:

Definitions

1. “Survey,” as defined by federal law and as used in Board policy and this regulation, includes an evaluation. It does not apply to a survey administered to a student in accordance with the Individuals with Disabilities Education Act (IDEA);
2. “Covered survey items” means one or more of the following items: political affiliations or beliefs of the student or the student’s family; mental and psychological problems of the student or the student’s family; sex behavior or attitudes; illegal, antisocial, self-incriminating or demeaning behavior; critical appraisals of other individuals with whom respondents have close family relationships; legally recognized privileged or analogous relationships, such as those of lawyers, physicians and ministers; religious practices, affiliations or beliefs of the student or the student’s parent; and income, other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program;
3. “Covered activities,” requiring notification, means those activities involving the collection, disclosure or use of personal information collected from students for the purpose of marketing or for selling that information or otherwise providing that information to others for that purpose; the administration of any survey containing one or more covered survey items; and any nonemergency, invasive physical examination or screening that is required as a condition of attendance, administered and scheduled by the school in advance and not necessary to protect the immediate health and safety of the student, or of other students. This provision does not apply to physical examinations or screenings that are permitted or required by law, including physical examinations or screenings permitted without parental notification;
4. “Third parties” include, but are not limited to, school volunteers, parents, school visitors, service contractors or others engaged in public charter school business, such as employees of businesses or organizations participating in cooperative work programs with the public charter school and others not directly subject to public charter school control;
5. “Instructional material” means instructional content that is provided to a student, regardless of its format, including printed or representational materials, audiovisual materials and materials in electronic or digital formats (such as materials accessible through the Internet). The term does not include academic tests or academic assessments;

6. “Personal information” means individually identifiable information including a student or parent’s first and last name; a home or other physical address (including street name and the name of the city or town); telephone number; or a social security identification number;
7. “Invasive physical examination” means any medical examination that involves the exposure of private body parts, or any act during such examination that includes incision, insertion or injection into the body. It does not include a hearing, vision or scoliosis screening and does not apply to any physical examination or screening that is permitted or required by an applicable state law, including physical examinations or screenings that are permitted without parental notification.

Requests to Inspect Materials

Parents may inspect surveys, instructional materials or instruments used to collect personal student information for marketing purposes before such items are administered or distributed by HCCS to a student as follows:

1. Requests may be directed to the school office by phone or in person;
2. Requests must be received by the school no later than five working days following receipt of notification by the school of its intent to administer or distribute such items;
3. Materials may be reviewed at the school office or mailed by the school;
4. Requests to mail materials must be accompanied by a self-addressed, stamped envelope.

Requests to Excuse Student from Covered Activities

A parent may request that his/her student be excused from participation in any of the following covered activities:

1. The collection, disclosure or use of personal information collected from students for the purpose of marketing or selling that information to others;
2. Any school or third party survey;
3. The administration of nonemergency, invasive physical examinations or screenings.

All such requests must be:

1. Directed to the administrator/principal in writing;
2. Received by the school no later than five working days following receipt of notification by the school of its intent to administer or distribute such items.

Student Privacy

HCCS recognizes its responsibility to protect student privacy in the event of administration or distribution of a survey to a student containing one or more covered survey items.

A student's personal information that may be collected as a result of such surveys will be released only with prior, written parental permission. HCCS will use reasonable methods to identify and authenticate the identity of the parents, students, school officials, and any other parties to whom the school discloses personally identifiable information from educational records.

Notification

The administrator/principal shall be responsible for ensuring appropriate notification to parents of their rights under federal law, Board policy and this regulation. Accordingly, notification will:

1. Be made at least annually at the beginning of the school year or at other times during the school year when enrolling students for the first time in school;
2. Include the specific or approximate dates during the school year when covered activities are scheduled or expected to be scheduled.



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Adopted: 7/21/21

Parental Rights**

The HCCS Board recognizes the importance of promoting parental input in decision making related to their student's health and general well-being, in determining school and student needs for educational services, in program development and school operations. To assist the school in this effort, and in accordance with law, the school affirms the right of parents, upon request, to inspect:

1. A survey created by a third party before the survey is administered or distributed by HCCS to a student, including any district survey containing "covered survey items"¹;
2. Any instructional material used by the school as part of the educational curriculum for the student;
3. Any instrument used in the collection of personal information from students for the purpose of marketing or for selling that information or otherwise providing that information to others for that purpose.

As provided by law, parents of HCCS students will also, upon request, be permitted to excuse their student from "covered activities"². The rights provided to parents under this policy, transfer to the student when the student turns 18 years of age, or is an emancipated minor under applicable state law.

The administrator/principal will ensure that activities requiring parental notification are provided as required by law and that reasonable notice of the adoption or continued use of this policy is provided to parents of students enrolled in HCCS. The input of parents will be encouraged in the development, adoption and any subsequent revision of this policy.

The administrator/principal shall develop administrative regulations to implement this policy, including provisions as may be necessary to ensure appropriate notification to parents of their rights under federal law and public charter school procedures to request review of covered materials, excuse a student from

¹ "Covered survey items," under ESSA, includes one or more of the following items: political affiliations or beliefs of the student or the student's family; mental and psychological problems of the student or the student's family; sex behavior or attitudes; illegal, antisocial, self-incriminating or demeaning behavior; critical appraisals of other individuals with whom respondents have close family relationships; legally recognized privileged or analogous relationships, such as those of lawyers, physicians and ministers; religious practices, affiliations or beliefs of the student or the student's parent; and income, other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program.

² "Covered activities," requiring notification, under ESSA, include activities involving the collection, disclosure or use of personal information collected from students for the purpose of marketing or for selling that information or otherwise providing that information to others for that purpose; the administration of any survey containing one or more of covered survey items; and any nonemergency, invasive physical examination or screening that is required as a condition of attendance and administered and scheduled by the school in advance. See the administrative regulation for additional definitions.

participating in covered activities and protect student privacy in the event of administration or distribution of a survey to a student.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(1\)\(z\)](#)

Protection of Pupil Rights, 20 U.S.C. § 1232h (2012); Student Rights in Research, Experimental Programs and Testing, 34 C.F.R. Part 98 (2015).

Every Student Succeeds Act of 2015, 20 U.S.C. § 7928 (2012).

Family Education Rights and Privacy Act, 20 U.S.C. § 1232g (2012).



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Public Records

In compliance with Oregon law the following guidelines apply to the dissemination, inspection and examination of the public records of HCCS:

1. A public records request shall be submitted in writing through the school office at 3500 SW 104th Ave, Beaverton, OR 97005.
2. Upon receipt of a written request, the school shall respond within five business days¹ acknowledging receipt of the request or completing² the school's response to the request. If an acknowledgment of the request is provided, it must:
 - a. Confirm that the school is the custodian of the requested record;
 - b. Inform the requester that the school is not the custodian of the requested record; or
 - c. Notify the requester that the school is uncertain whether the school is the custodian of the requested record.
3. If the school is the custodian of the requested record, as soon as reasonably possible but not later than 10 business days after the date the school is required to acknowledge receipt of the request as described above, the school shall:
 - a. Complete its response to the public records request. If the school determines that a record is exempt from public disclosure, the school will include a statement to that effect, and that the requester may appeal the decision pursuant to state law; or
 - b. Provide a written statement that the school is still processing the request and a reasonable estimated date by which the school expects to complete its response based on the information currently available.
4. The time periods, established by Oregon law and identified above in Section 2 or 3, will not apply to the school if compliance would be impracticable because:

¹ "Business day" means a day other than Saturday, Sunday or a legal holiday, and on which at least one paid employee of the public charter school is scheduled to and does report to work. Business day does not include any day on which the [central administration office for the public charter school is closed.

² The public charter school response to a public records request will be considered complete when it complies with criteria in Oregon law (ORS 192.329).

- a. The staff or volunteers³ necessary to complete a response to the public records request are unavailable;
- b. Compliance would demonstrably impede the school's ability to perform other necessary services; or
- c. Of the volume of the public records request being simultaneously processed by the school.

The school shall, as soon as practicable and without unreasonable delay, acknowledge a public records request and complete the response to the request.

5. The school may request additional information or clarification from the requester for the purpose of expediting the school's response to the request as permitted by law. If the school requests additional information or clarification, in good faith, the obligation to complete the request is suspended until the requester provides the requested information or clarification or affirmatively declines to provide the information or clarification.
6. If a copy of a public record is requested, the school will provide a single copy. If a request to inspect a public record is made and the record is maintained in a machine readable or electronic form, the custodian shall provide the record in the form requested, if available. If the public record is not available in the form requested, it will be provided in the form the record is maintained. If a person who is a party to a civil judicial proceeding to which the public charter school is a party or who has filed notice under Oregon Revised Statute (ORS) 30.275(5)(a) asks to inspect or to receive a copy of a public record that the person knows relates to the proceeding or notice, the individual must submit the request in writing to the designated custodian of school records and at the same time to the public charter school's attorney.
7. Information will be made available to individuals with disabilities in an appropriate format upon request and advance notice. Auxiliary aids and services available to qualified persons with disabilities may include large print, Braille, audio recordings, readers, assistance in locating materials or other equally effective accommodations.
8. Where the labor effort exceeds 30 minutes, labor, material and out-of-pocket charges will be reimbursed to the school. Labor will be calculated at the hourly rate of the employee affected. Copies will be charged at the rate of \$0.25 per page. If total fees are estimated to exceed \$25, HCCS will obtain prior written authorization from the requester before proceeding with the request. Auxiliary aids and services for qualified persons with disabilities will be available at no additional charge.

If the school has informed the requester of a permitted fee, the obligation of the school to complete its response to the request is suspended until the fee has been received by the school. If the requester fails to pay the fee within 60 days of the date the requester was informed of the fee or fails to pay the fee within 60 days of the date on which the school informed them of the denial of the fee waiver, the school shall close the request.

9. The school reserves the right to restrict the inspection of some public records to the school's facilities.

³ Staff member or volunteers who are on leave or are not scheduled to work are considered to be unavailable.



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Public Records**

“Public record” means any information that:

1. Is prepared, owned, used or retained by the public charter school;
2. Is related to an activity, transaction or function of the public charter school; and
3. Is necessary to satisfy the fiscal, legal, administrative or historical policies, requirements or needs of the public charter school.

Public record does not include messages on voice mail or on other telephone message storage and retrieval systems, or spoken communication that is not recorded.

A request to inspect or receive a copy of a public record shall be in writing and will be presented to the school office.

HCCS Board meetings and records will be matters of public information subject to such restrictions as are set by federal law or regulation, by state statute or by pertinent court rulings.

The HCCS Board’s official minutes, its written policies and its financial records will be available at the school office for inspection by any community member desiring to examine them during hours when the school office is open. All such information will be made available to individuals with disabilities in any appropriate format, upon request and with appropriate advanced notice. Auxiliary aids and services available to ensure equally effective communications to qualified persons with disabilities may include large print, Braille, audio recordings, readers, assistance in locating materials or other equally effective accommodations.

The Board supports the right of the people to know about programs and services of their schools and will make every effort to disseminate information. The administrator/principal is authorized to use all means available to keep parents and others in the school’s community informed about the school’s program and activities.

No records will be released for inspection by the public or any unauthorized persons – either by the administrator/principal or any other person designated as custodian for school records – if such disclosure would be contrary to the public interest, as described in state law.

The Board reserves the right to establish a fee schedule which will reasonably reimburse the school for the actual cost of making public records available pursuant to law. The school will not be obligated to

complete a request for which the requester has not paid the fee as permitted by state law. There will be no additional charge for auxiliary aids and services provided for qualified persons with disabilities.

HCCS employee and volunteer addresses, electronic mail addresses (other than public charter school electronic mail addresses assigned by the public charter school to employees), social security numbers, dates of birth and telephone numbers contained in personnel records maintained by the public charter school are exempt from public disclosure pursuant to Oregon Revised Statute (ORS) 192.345 and ORS 192.355(3). Such information may be released only upon the written request of the employee or volunteer or as otherwise provided by law. This exemption does not apply to a substitute teacher, as defined in ORS 342.815, when requested by a professional education association of which the substitute teacher may be a member. Electronic mail addresses assigned by the school to employees are not exempt.

HCCS will not disclose the identification badge or card of an employee without the employee's written consent if the badge or card contains the employee's photograph and the badge or card was prepared solely for internal use by the school to identify school employees. A duplicate of the photograph used on the badge or card shall not be disclosed.

HCCS shall not, in accordance with state law, disclose personal information for the purpose of enforcement of federal immigration laws.

HCCS shall retain and maintain its public records in accordance with Oregon Administrative Rule (OAR) 166, Division 400.

END OF POLICY

Legal Reference(s):

[ORS 180.805](#)

[ORS Chapter 192](#)

[ORS 338.115\(2\)](#)

[OAR 137-004-0800\(1\)](#)

[OAR 166-400](#)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2012); 29 C.F.R. Part 1630 (2017); 28 C.F.R. Part 35 (2017).

OREGON DEP'T OF JUSTICE, OREGON ATTORNEY GENERAL'S, *Public Records and Meetings Manual* (2014).

Americans with Disabilities Act Amendments Act of 2008.



Code: KGB
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Public Conduct on Public Charter School Property

No person on public charter school property or any public charter school grounds, including parking lots, shall:

1. Haze, harass, intimidate, bully or menace another, or engage in behavior deemed by the public charter school to endanger the safety of students, employees, self or others;
2. Use or engage in abusive verbal expression or physical conduct that interferes with the performance of students, event officials or sponsors of approved activities;
3. Damage the property of another or of the public charter school;
4. Initiate or circulate a report, one knows to be false, concerning an alleged hazardous substance, impending fire, explosion, catastrophe or other emergency that will take place in or upon a school;
5. Construct or transport to public charter school property for temporary or permanent purposes any structure not approved for construction on, or transportation to, public charter school property;
6. Uproot, pick, cut, mutilate or remove plant life or other natural resources of any kind. Roots, tubers, flowers and stems may not be collected. Soil or rock may not be dug up or removed;
7. Dump or spill any sewage, waste water or other fluids from any vehicle;
8. Use public charter school waste containers or other district property for the deposit of waste or refuse generated from household, commercial, industrial, construction or other uses not related to approved use on public charter school property;
9. Block, obstruct or interfere with vehicular or pedestrian traffic on any public charter school road, parking area, walkway, pathway or common area. Occupying or impeding access to any public charter school facility in a manner that interferes with the approved use of such facility by public charter school employees, students or other authorized users is prohibited;
10. Fly, launch or otherwise operate motorized model airplanes/helicopters/rockets or other similar propulsion devices unless approved in advance by the public charter school;
11. Operate an unmanned aircraft system (UAS) or drone unless granted permission from the administrator/principal or designee;

12. Distribute or post circulars, notices, leaflets, pamphlets or other written or printed material in violation of Board policy KJA - Materials Distribution;
13. Operate a concession, solicit, sell or offer for sale any goods, wares, merchandise, food, beverages or services without prior public charter school approval;
14. Operate a motor vehicle in an area other than on roads and in parking areas constructed or designated for motor vehicle use. Vehicles shall be driven in a safe manner, at posted speeds and will only be appropriately parked in areas designated by the public charter school. Motorized vehicles such as minibikes, scooters, go-carts, all-terrain-vehicles, snowmobiles and other similar devices are prohibited on public charter school grounds. Bicyclists must comply with motor vehicle and bike regulatory signs;
15. Use a skateboard, rollerblades, scooter or similar device;
16. Bring an animal into a public charter school building without prior administrator approval and, where appropriate, only when proof of current rabies vaccination has been provided. Dogs are permitted on public charter school grounds only when confined to a vehicle. All other animals on public charter school property are permitted with prior public charter school approval only. Animals serving the disabled are permitted as provided by law;
17. Camp overnight, loiter or otherwise be present on public charter school property after the conclusion of approved activities or as otherwise posted or authorized by the public charter school. Individuals are prohibited from entering any portion of public charter school's premises at any other time for purposes other than those which are lawful and authorized by public charter school officials;
18. Use or operate any noise-producing machine, vehicle, device or instrument in a manner that, in the judgment of public charter school officials, is disturbing to, or interferes with, the orderly conduct of public charter school programs or approved activities;
19. Impede, delay or otherwise interfere with the orderly conduct of the public charter school's educational program or any other activity taking place on public charter school property which has been authorized by the public charter school;
20. Bring, possess or use a weapon as prohibited by state and federal law;
21. Possess, consume, sell, give or deliver unlawful drugs and/or alcoholic beverages. Possess, sell, give or deliver drug paraphernalia;
22. Use, distribute or sell tobacco products or inhalant delivery systems, in any form;
23. Violate posted regulatory signs;
24. Willfully violate other public charter school policies, administrative regulations or school rules designed to maintain public order on school property.

Persons having no legitimate purpose or business on public charter school property, or those violating or threatening to violate the above rules, may be issued a trespass citation, ejected from the premises,

excluded from public charter school-approved activities temporarily or permanently and/or referred to law enforcement officials.

The administrator/principal will ensure that appropriate notice of these rules is provided.

END OF POLICY

Legal Reference(s):

<u>ORS 161.015</u>	<u>ORS 166.210 to -166.370</u>	<u>ORS 433.835 to -433.990</u>
<u>ORS 164.245</u>	<u>ORS 336.109</u>	<u>ORS 806.060 to -806.080</u>
<u>ORS 164.255</u>	<u>ORS 338.115</u>	<u>OAR 333-015-0025 to -0090</u>
<u>ORS 166.025</u>	<u>ORS 339.883</u>	<u>OAR 581-021-0110</u>
<u>ORS 166.155 to -166.165</u>	<u>ORS 431.840</u>	<u>OAR 584-020-0040(4)(e),(g)</u>

Gun-Free Schools Act, 20 U.S.C. 7961 (2012).

Pro-Children Act of 1994, 20 U.S.C. §§ 6081-6084 (2012).

Gun-Free School Zones Act of 1990, 18 U.S.C. §§ 921(a)(25)-(26), 922(q) (2012).

Cross Reference(s):

ECAB - Vandalism, Malicious Mischief or Theft

KGC/GBK - Prohibited Use, Distribution or Sale of Tobacco Products and Inhalant Delivery Systems



Code: KGC/GBK
Adopted: 7/21/21

Prohibited Use, Distribution or Sale of Tobacco Products and Inhalant Delivery Systems**

To be consistent with Oregon law, the use, distribution or sale of tobacco products or inhalant delivery systems by staff and all others is prohibited on HCCS premises, in any building or facility, on school grounds, including parking lots, in any vehicle owned, rented, or chartered by the school and at all school-sponsored activities.

For the purpose of this policy “tobacco products” is defined to include, but not limited to, any lighted or unlighted cigarette, cigar, pipe, bidi, clove cigarette, and any other smoking product, spit tobacco, also known as smokeless, dip, chew or snuff, in any form. This does not include products that are USFDA-approved for sale as a tobacco cessation product or for any other therapeutic purpose, if marketed and sold solely for the approved purpose.

For the purpose of this policy, “inhalant delivery system” means a device that can be used to deliver nicotine or cannabinoids in the form of a vapor or aerosol to a person inhaling from the device; or a component of a device or a substance in any form sold for the purpose of being vaporized or aerosolized by a device, whether the component or substance is sold or not sold separately. This does not include products that are USFDA-approved for sale as a tobacco cessation product or for any other therapeutic purpose, if marketed and sold solely for the approved purpose.

Violation of this policy by staff may result in discipline up to and including dismissal.

Violation of this policy by the public may result in the individual’s removal from HCCS property. HCCS reserves the right to restrict access to school property by individuals who are repeat offenders.

This policy shall be enforced at all times.

END OF POLICY

Legal Reference(s):

ORS 336.227	ORS 433.835 to -433.990	OAR 581-053-0330(1)(m)
ORS 338.115(1)(x)		OAR 581-053-0430(12)
ORS 339.883	OAR 581-021-0110	OAR 581-053-0531(11)
ORS 431A.175	OAR 581-053-0230(9)(s)	

Pro-Children Act of 1994, 20 U.S.C. §§ 6081-6084 (2012).

Cross Reference(s):

GBK/KGC - Prohibited Use, Distribution or Sale of Tobacco Products and Inhalant Delivery Systems

Prohibited Use, Distribution or Sale of Tobacco Products
and Inhalant Delivery Systems** – KGC/GBK



Code: KGF/EDC
Adopted: 7/21/21

Authorized Use of School Equipment and Materials

HCCS materials and equipment will be used only for school purposes by HCCS personnel on HCCS properties.

Exceptions to this policy must be approved by the administrator/principal and authorized use shall be consistent with Oregon Revised Statute (ORS) Chapter 244.

END OF POLICY

Legal Reference(s):

[ORS Chapter 244](#)

[ORS 338.115\(2\)](#)

[OAR 584-020-0040](#)

OREGON GOVERNMENT ETHICS COMMISSION, OREGON GOVERNMENT ETHICS LAW, A GUIDE FOR PUBLIC OFFICIALS (2010).

Cross Reference(s):

EDC/KGF - Authorized Use of School Equipment and Materials



Code: KJA
Adopted: 7/21/21

Materials Distribution**

Requests by individuals or groups to distribute pamphlets, booklets, flyers, brochures and other similar materials to students for classroom use or to take home shall be submitted to HCCS administration. Materials and the proposed method of distribution shall be subject to review.

Materials shall be reviewed based on legitimate educational concerns. Such concerns include: the material is or may be defamatory; the material is inappropriate based on the age, grade level and/or maturity of the reading audience; the material is poorly written, inadequately researched, biased or prejudiced; the material contains information that is not factual; the material is not free of racial, ethnic, religious or sexual bias; or the material contains advertising that violates public school laws, rules and/or policy, is deemed inappropriate for students or that the public might reasonably perceive to bear the sanction or approval of the administrator/principal or designee.

The administrator/principal or designee shall determine distribution procedures. Such procedures may include:

1. Distribution to each student before or after class if materials are not directly related to the instructional goals;
2. Notification to students or parents of the availability of the materials in a specified location if this procedure is deemed less disruptive to the educational process; or
3. Solicitation of school-related groups such as parent organizations to distribute materials.

The practice of distributing pamphlets, booklets, flyers, brochures and other similar materials shall be periodically reviewed to ensure that the mere volume of requests has not become an interruption to the educational process.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(2\)](#)

46 OR. ATTY. GEN. OP. 239 (1989).

Cross Reference(s):

GBI - Gifts and Solicitations



Code: KK
Adopted: 7/21/21

Visitors to School Facilities**

The HCCS Board believes that a better understanding of its educational program and improved relationship between the schools and community can be developed through school and classroom visitations of parents and patrons. Such visitations should be encouraged, arranged and permitted within considerations of the requirements of the educational program, the orderly administration of the school, school grounds and classrooms and the safety and welfare of students and staff.

The school is responsible for the schools' supervision and administration. To ensure that school work is not disrupted and that visitors are properly directed to the areas in which they are interested, all visitors to school facilities must report to the school office upon entering school property.

1. Teachers' work must not be impeded by interruption of visitors or by unreasonable demands on their time.
2. Visitors must not contact individual students except as authorized by the administrator/principal and/or teachers.
3. When in the interest of orderly educational programs and the safety of students it is determined by the administrator/principal that some specific visitor or visitors shall not be permitted to enter the school facilities, the administrator/principal shall do the following:
 - a. Advise the person that they are refused admission and give that person an explanation for the refusal;
 - b. If possible and appropriate, attempt to arrange alternative visitation of school facilities.
4. A visitor with permission to visit may be directed to leave when any teacher or administrator reasonably believes the visitor has engaged in physical violence, loud or disruptive speech or behavior, violation of a posted school rule or illegal conduct.

A visitor may also be directed to leave by the staff member administratively in charge of the building if the visit would be disruptive to the educational program or school order; would impede the work of teachers through visitor's interruptions or unreasonable demands on teacher time; or if the visitors' course of conduct would conflict with Board policies, school regulations or would violate the law.

5. A direction to leave revokes any permission to visit or license to enter. Whenever possible, the direction should be given in writing or followed by written notice which identifies the issuer and gives a brief statement of the reason for the direction to leave. The administrator/principal's office should be notified of any direction to leave and given a copy of any written notice.

6. Those who insist on remaining despite an administrator/principal's request to leave and who thereby create a disruption of the carrying on of school business are subject to citizen's arrest and a report made to law enforcement. Failure to leave will render a visitor liable for criminal trespass pursuant to Oregon law.
7. Any visitor who believes that they had a visit unfairly limited, may request a meeting with the administrator/principal. The administrator/principal shall meet with the visitor, investigate the dispute and render a written decision. The administrator/principal's decision may be appealed to the Board.
8. Any visitor who commits a violent act or threatens to commit a violent act toward a student or staff member while on school grounds, at a school-sponsored event or on the way to and from school, shall be reported immediately to the administrator/principal. The administrator/principal shall immediately contact any student or staff member involved.

END OF POLICY

Legal Reference(s):

[ORS 164.245](#)
[ORS 164.255](#)

[ORS 166.025](#)
[ORS 166.155 to -166.165](#)

[ORS 338.115\(2\)](#)



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Public Complaint Procedure

An individual or organization that alleges the public charter school is violating or has violated provisions of restraint or seclusion in Oregon Revised Statute (ORS) 339.285 - 339.303 or Oregon Administrative Rule (OAR) 581-021-0550 - 581-021-0570 (Restraint or Seclusion) is encouraged to initiate Step One of this complaint procedure and file a complaint with the administrator.

A parent or guardian of a student attending the public charter school, a staff member, a student or patron of the public charter school who wishes to express a concern should discuss the matter with the public charter school employee involved. If the concern remains unresolved, a complaint may be filed.

The Administrator/Principal: Step One:

A complainant may file a complaint with the administrator/principal clearly stating the nature of the complaint and a suggested remedy. A form is available, but is not required.

The administrator/principal shall investigate the complaint, confer with the complainant and the parties involved, prepare a report of the findings and conclusion, and provide a report in writing or in an electronic form to the complainant within five working days of receipt of the complaint.

The Board: Step Two

If the complainant is dissatisfied with the administrator/principal's findings and conclusion, the complainant may appeal the decision to the Board within five working days of receiving the administrator/principal's decision. The Board will review the findings and conclusion of the administrator/principal in a public meeting to determine what action is appropriate. The Board may use executive session if the subject matter qualifies under Oregon law. Appropriate action may include, but is not limited to, holding a hearing, requesting additional information, and adopting the administrator/principal's decision as the public charter school board's decision. All parties involved may be asked to attend such hearing for the purposes of making further explanations and clarifying the issues.

The complainant shall be informed of the Board's decision within 20 days from the hearing of the appeal to the Board. The Board's decision will address each allegation in the complaint and contain reasons for the Board's decision. The Board's decision will be final.

If the Board chooses not to hear the complaint the administrator/principal's decision is final.

The complaint procedure will not be longer than 90 days from the filing date of the original complaint with the administrator/principal. The timelines may be extended upon written agreement between the public charter school and the complainant.

Complaints against the director of operations will be filed with the administrator/principal. Complaints against the administrator/principal should be filed with the Board chair on behalf of the Board to the HCCS Board at board@hopeccs.org. The Board chair shall present the complaint to the Board in a Board meeting. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete, the results will be presented to the Board. The Board may use executive session if the subject matter qualifies under Oregon law. The Board shall decide, within 20 days, in open session what action, if any, is warranted. The written final decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Complaints against the Board as a whole or against an individual Board member should be referred to the Board chair on behalf of the Board to board@hopeccs.org. The Board chair shall present the complaint to the Board in a Board meeting. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete, the results will be presented to the Board. The Board shall decide, within 20 days, in open session what action if any, is warranted. The written final decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Complaints against the Board chair should be referred directly to the HCCS board (board@hopeccs.org) on behalf of the Board. If the Board decides an investigation is warranted, the Board may refer the investigation to a third party. When the investigation is complete the results will be presented to the Board. The Board shall decide, within 20 days, in open session what action, if any, is warranted. The written decision of the Board regarding the complaint shall be issued by the Board within 10 days.

Appeal Process

A final decision reached by the public charter school board for a complaint that alleges a violation of ORS 339.285 - 339.303 or OAR 581-021-0550 - OAR 581-021-0570 (Restraint or Seclusion), ORS 659.852 (Retaliation), or applicable OAR Chapter 581, Division 22 (Division 22 Standards), is recognized as the final decision regarding this complaint by the Board of the Hope Chinese Charter School. A final decision may be appealed to the Oregon Department of Education under OAR 581-002-0003 - 581-002-0005.

Hope Chinese Charter School

COMPLAINT FORM

To: ☐ Employee* ☐ Administrator/Principal* ☐ Board chair ☐ Board vice chair

* Form available but is not required.

Person Making Complaint _____

Phone Number _____ Email _____

Nature of Complaint _____

Who should we talk to and what evidence should we consider? _____

Suggested solution/resolution/outcome: _____

Signature of Complainant: _____ Date: _____

.....

Office Use

Disposition of Complaint: _____

Signature: _____ Date: _____

cc: School Office



Code: KL
Adopted: 7/21/21

Public Complaints**

Parents, staff members, and students, and patrons of the public charter school are encouraged to make their complaints known to the public charter school and to afford the public charter school an opportunity to review those concerns and respond to them. Complaints about instructional or learning materials, staff members, discipline, alleged violation of applicable state standards or academic content standards, or retaliation against a student who in good faith reported information that the student believes is evidence of violation of state or federal law, rule or regulation, should approach the involved employee and, if possible, resolve the complaint at this level.

An individual or organization may petition the public charter school with complaints that the public charter school is violating or has violated provisions of restraint or seclusion in Oregon Revised Statute (ORS) 339.285 - 339.303 or Oregon Administrative Rule (OAR) 581-021-0550 - 581-021-0570 (Restraint or Seclusion).

The complainant must follow the complaint procedure as outlined in administrative regulation KL-AR - Public Complaint Procedure.

Complaints about Board policy or administrative regulations should be referred directly to the administrator/principal.

Complaints about the administrator/principal should be referred to the Board chair on behalf of the Board (See KL-AR – Public Complaint Procedure).

Complaints against the Board as a whole or against an individual Board member should be referred to the Board chair on behalf of the Board (See KL-AR – Public Complaint Procedure).

Complaints against the Board chair should be referred directly to the HCCS Board (board@hopeccs.org) (See KL-AR – Public Complaint Procedure).

If a complaint is not resolved in any step of the complaint process, the complainant may request that it be moved on to the next step in accordance with the established procedure (See KL-AR – Public Complaint Procedure).

When a complaint is made directly to the Board or to an individual Board member, it should be referred to KL-AR – Public Complaint Procedure as appropriate. A Board member shall not attempt to consider such complaints in any official capacity acting as an individual Board member.

The administrator/principal shall develop administrative regulations designed to encourage the timely resolution of complaints while providing a system of review which will allow both the complainant and other affected parties an opportunity to be heard.

If the complaint alleges discrimination pursuant to ORS 659.850, OAR 581-021-0045, OAR 581-021-0046, or OAR 581-021-0047 (Discrimination), the complainant is encouraged to utilize the complaint process in AC-AR - Discrimination Complaint Procedure.

END OF POLICY

Legal Reference(s):

[ORS 192.660](#)
[ORS 338.115](#)

[ORS 339.303](#)
[ORS 659.852](#)

[OAR 581](#)-021-0570

Anderson v. Central Point Sch. Dist., 746 F.2d 505 (9th Cir. 1984).
Connick v. Myers, 461 U.S. 138 (1983).

Cross Reference(s):

AC - Nondiscrimination



Code: KN-AR(1)
Revised/Reviewed: 7/21/21

Relations with Law Enforcement Agencies**

Request to Interview a Student or to Conduct an Investigation by Law Enforcement (Other Investigations)

1. Interviews or investigations by law enforcement officials **not** based on allegations of abuse of a child, a warrant for an arrest or search or probable cause that an illegal act or crime is occurring or has been committed on school property, may be permitted upon request and with administrator/principal or designee approval.
2. The law enforcement official shall contact the administrator/principal or designee, provide adequate identification, inform the administrator/principal or designee of the nature of the investigation and provide the name of the student to be interviewed.
3. The administrator/principal or designee shall verify and record the identity of the law enforcement official or other authority.
4. Requests to interview a student during school hours should be, in the opinion of the administrator/principal or designee, important and urgent to justify interrupting school activities.
5. The administrator/principal or designee will attempt to notify the student's parent(s) prior to granting the interview.

If the parent(s) does not give consent to have their child interviewed, then the interview should not take place.

6. If the parent(s) cannot be contacted, the administrator/principal or designee may grant permission for the questioning to proceed if the student agrees to be interviewed or in the event of compelling emergency circumstances. If the administrator/principal or designee has been unable to contact the parent(s) then the administrator/principal or designee shall make a reasonable attempt to notify the parent(s) as soon as possible after the interview.
7. All such interviews shall be conducted in privacy, out of the view of staff, students and others.
8. The administrator/principal or designee shall be present at all times during the interview unless the student's parent(s) is present and asks the administrator/principal or designee not to participate or the school official is otherwise prohibited from being present by law.
9. The administrator/principal or designee shall maintain a written record of all such interviews conducted.

Questioning of a Student Suspected of a Crime, Arrest or Taking a Student into Custody

1. When a student is a suspect in a criminal act and is to be questioned by a law enforcement official for the purpose of establishing involvement in the act, questioning will be allowed on school property only with parental consent. Normally, such questioning should occur outside school hours and off school property.
2. At no time will a student be released to a law enforcement officer without one of the following:
 - a. A warrant;
 - b. A court order;
 - c. Arrest;
 - d. Protective custody resulting from abuse of a child investigation;
 - e. Permission of the parent.
3. In all cases, **other than** abuse of a child cases, where a student is to be taken from the building by a law enforcement official, the administrator/principal or designee will verify the official's identity and make a reasonable effort to notify the student's parent(s). Law enforcement officials have the primary responsibility for notifying the parent(s) in such instances. School officials must request law enforcement officials to complete the appropriate form provided by the public charter school. (See KN-AR(2) – Investigations Conducted on School Premises)

Abuse of a Child Investigations

Any investigation of abuse of a child will be directed by the Oregon Department of Human Services (DHS) or law enforcement officials as required by law. The DHS or law enforcement agency will first notify the administrator/principal or designee of the investigation, unless the administrator/principal or designee is a subject of the investigation. The administrator/principal or designee will request identification from the investigating official and must request the investigating official fill out the appropriate form (see JHFE-AR(2) – Abuse of a Child Investigations Conducted on School Premises). If the investigating official refuses to fill out or sign the form, the administrator/principal or designee may complete the form but should not deny the official's request to interview the student on school property. If the investigating official does not have adequate identification the administrator/principal or designee shall refuse access to the student. The administrator/principal or designee may be present at the interview of the student at the discretion of the investigating official. When the subject matter of the interview or investigation involves abuse of a child, school officials and school employees shall not notify the parents.

Administrator-Initiated Requests

On occasion, the administrator/principal may need, or be required to seek law enforcement assistance. Any student violation of the school's weapons policy shall be reported to the appropriate law enforcement agency. Abuse of a child also requires immediate referral to the DHS or law enforcement officials. Additionally, the administrator/principal and/or designee(s) may report to law enforcement officials, other violations of law occurring on school property or at school-sponsored activities, as deemed appropriate.



Code: KN-AR(2)
Revised/Reviewed: 7/21/21

Investigations Conducted on School Premises

When the administrator/principal is notified that law enforcement would like to interview a student at school for the purpose of an investigation that is not related to abuse of a child, the administrator/principal or designee must request that the investigating official provide the information below. Failure to meet one of the five criteria may result in the administrator/principal's or designee's refusal to allow the student interview on school property.

I, _____ (Name) of _____ (Agency)
declare that I have the authority to conduct this student interview based on the following:

1. ☐ Warrant (attach copy)
2. ☐ Court order (attach copy)
3. ☐ Exigent circumstances (briefly describe): _____

4. Parental consent

Parent or guardian's name: _____
Date consent granted: _____
5. This interview is not considered a "seizure" pursuant to state and federal law.

Signature of interviewer

Date

Name of student to be interviewed

Date of interview

- ☐ Student not available for interview
☐ Student refused to be interviewed

Name of school official (administrator/principal or
designee) receiving this form

This form should be placed in a separate file and not in student's educational record file.

